



U.S. Department
of Transportation

Research and
Special Programs
Administration

APR 30 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11441
(FIRST REVISION)

EXPIRATION DATE: April 30, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. **GRANTEE:** Carrier Corporation d/b/a United Technologies
Carrier
Syracuse, New York
2. **PURPOSE AND LIMITATION:** This exemption authorizes the manufacture, marking, and sale of certain refrigerating machines containing nonflammable, nonpoisonous liquefied refrigerant gas to be transported in commerce. This exemption provides no relief from any regulation other than as specifically stated herein.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR Part 173.306(e)(i).
5. **BASIS:** This exemption is based on the application of Carrier Corporation dated February 19, 1997, submitted in accordance with 49 CFR 107.109.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Refrigerating machines, containing non-flammable, non- poisonous, liquefied gas	2.2	UN2857	N/A

7. **PACKAGING AND SAFETY CONTROL MEASURES:**
 - a. **PACKAGING** - Packaging prescribed are new (unused) refrigerating machines or components thereof that are excepted from the specification packaging requirements of 49 CFR Part 173. Shipments are not subject to the following portions of the 49 CFR: Subpart F of part

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172, to part 174 except §174.24 and to part 177 except §177.817. Packagings must meet all requirements of 49 CFR 173.306(e) except as follows:

§173.306(e)(i) Each pressure vessel may be shipped with not more than 7,500 pounds of Group A1 refrigerant as classified in ANSI/ASHRAE 15, entitled "Safety Code for Mechanical Refrigeration".

8. SPECIAL PROVISIONS:

a. Offerors for transportation of the hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals Program for a specific manufacturing facility.

c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

d. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

e. MARKING - The outside of each packaging must be marked "DOT-E 11441".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.

10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for Gina Mazzullo
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

4/30/97
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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